

Orissa Aided Educational Institutions (Appointment of Lectures Validation) Act, 1998

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Orissa Aided Educational Institutions (Appointment of Lectures Validation) Act, 1998

Act 14 of 1998

Published on 10 October 1998

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Orissa Aided Educational Institutions (Appointment of Lectures Validation) Act, 1998

(Orissa Act

14 of 1998

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Received the assent of the Governor on the 10th October 1998, first published in an extraordinary issue of the Orissa Gazette, dated the 17th October 1998.

An act to validate the appointments of certain lecturers of aided colleges and junior colleges in the state.

Be it enacted by the Legislature of the State of Orissa in the Forty-ninth Year of the Republic of India as follows:-

1.

Short Title.

- This Act may be called the Orissa Aided Educational Institutions (Appointment of Lecturers Validation) Act, 1998.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"aided College" means an aided educational institution which is a College;

(b)

"aided Junior College" means an aided educational Institution which is a Junior College;

(c)

"Education Act" means the Orissa Education Act, 1969 (Orissa Act

15 of 1969

);

(d)

"Selection Board" means the Selection Board constituted under the Education Act;

(e)

words and expressions used but not defined in this Act shall have the same meaning as respectively assigned it them in the Education Act or the rules framed thereunder,

3.

Validation of certain appointments.

(1)

Notwithstanding anything contained in the Education Act or in the rules framed thereunder, the Lecturers of Aided Colleges and aided Junior College who have been appointed on temporary basis against approved or admissible posts by the concerned Governing Bodies during the period between the 1st January 1985 and the 31st December 1992 and are continuing as such, having the requisite qualification prescribed to hold such post and are in pay roll of the concerned College against the said approved or admissible post, as the case may be, shall be deemed to have been validly and regularly appointed, and no such appointment shall be challenged in any Court of law merely on the ground that such appointment was made otherwise than in accordance with the procedure laid down in the Education Act or the rules framed thereunder:

Provided that the validation of the appointments as aforesaid shall not put persons already appointed regularly and validly or persons who may be appointed on the basis of the recommendation made by the Selection Board prior to the commencement of this Act, in a disadvantageous position in any manner whatsoever.

(2)

The Lecturers whose appointments are so validated shall be governed by the Orissa (Non-Government Colleges, Junior Colleges and Higher Secondary Schools) Grant-in-aid Order, 1994 for the purpose of their entitlements, but they shall be entitled to receive grant-in-aid towards their salary cost only as per the scale of pay admissible to a Non-Government College Lecture from time to time, with effect from the date of commencement of the Act.

Explanation. - The expressions "admissible post" and "approved post" shall have the same meaning as respectively assigned to them in the Order referred to in sub-section (2) of the section,

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